# Opening the Gates of Public Attention

Economic Blockade, Systemic Oppression, and Fair Opportunity for New Entrants

Prepared for lawmakers | Jonathan Michael Dionisio | October 25, 2026

## 1. A request to lawmakers

Members of Congress and state legislators: an economy cannot call itself open merely because everyone is permitted to upload a video, register a business, announce a candidacy, or publish an idea. Participation becomes meaningful when people have a realistic opportunity to be discovered and evaluated. A person who may speak but cannot reasonably reach an audience has formal access to a platform without comparable access to the opportunities that platform distributes. This essay asks lawmakers to address that gap across culture, commerce, civic leadership, and politics.

The public concern is direct: we keep encountering the same established people, brands, and institutions, over and over again. New participants are told to compete, but often must compete inside systems whose most valuable asset is accumulated attention. The proposed response is to create additional routes into public life: independent discovery platforms, voluntary spaces reserved for smaller participants, clearer sponsorship disclosures, and safeguards that make entry possible without purchasing celebrity-scale promotion.

This essay uses economic blockade to describe cumulative barriers to reaching customers, supporters, readers, listeners, and voters. It uses systemic oppression as a moral and policy argument about structures that can repeatedly restrict opportunity. These descriptions are not findings that every platform commits an unlawful monopoly, that every successful person abuses power, or that a coordinated conspiracy exists. Specific legal claims require specific evidence. The policy question is broader: whether public institutions should accept a system in which prior recognition so often becomes the price of future recognition.

The requested legislation would expand the number of doors through which people can enter. Its purpose is opportunity, rather than a guarantee of success. Established participants would retain their audiences and freedom to speak. New entrants would gain places where they can be assessed without immediately being crowded out by the largest names.

## 2. Repetition as a condition of participation

When people say they are being required to talk and listen about the same people repeatedly, lawmakers should hear a complaint about practical pressure. There is no general legal command to watch celebrities, follow an incumbent, or buy from a dominant brand. Yet the experience of public attention can feel compulsory when familiar names occupy the spaces through which people obtain information, communicate, shop, and seek work. Leaving those spaces can also mean leaving potential customers, collaborators, or community discussion.

A new commentator may feel pressure to discuss an established politician instead of presenting an original proposal. A musician may believe that reactions to famous performers will attract more attention than original music. A local business may spend its limited resources trying to appear beside a national chain. These are illustrative mechanisms, not measured claims about every person or platform. They explain why the issue includes the subjects people feel able to discuss, as well as who appears in a recommendation feed.

The result can be a recurring bargain: speak about people who are already visible in order to become visible yourself. Even criticism can send more attention toward the same names. A public conversation organized around that bargain may have many contributors while remaining narrow in its subjects. Thousands of accounts can discuss the same ten people without creating ten thousand independent centers of attention.

Lawmakers should ask whether users can easily choose something else. Can they request unfamiliar candidates, locally owned firms, first-time authors, or community organizations they have never encountered? Can they reduce repetition without dismantling every useful feature of a service? Giving people effective discovery controls would turn this complaint into a practical design question. It would allow the public to demonstrate demand for alternatives instead of requiring officials to decide which voices deserve prominence.

## 3. What an economic blockade means here

A conventional blockade obstructs passage. The economic blockade described in this proposal obstructs passage from participation to opportunity. It can arise when discovery, credibility, advertising, audience relationships, and payments depend on channels that a newcomer cannot afford or meaningfully influence. A person may be inside the marketplace in a technical sense while remaining outside its effective circulation of customers and support.

Consider a hypothetical new business with a useful product. It can create a page at little cost, but visibility may require advertising. Advertising requires money; money requires sales; sales require visibility. An emerging leader can encounter a similar circle when invitations depend on an established audience and audience growth depends on invitations. These examples do not establish misconduct. They identify circular entry conditions that public policy should examine rather than dismiss as an individual failure to work hard enough.

The blockade may consist of several modest obstacles rather than one absolute prohibition. A difficult export process, an opaque ranking change, a high customer-acquisition cost, and an inability to contact consenting followers can combine into a serious barrier. Their cumulative effect matters. A policy review that examines each obstacle separately may miss the experience of the participant who must overcome all of them at once.

The term should remain disciplined. This essay does not equate a disappointing audience result with a military blockade, legal embargo, or unlawful group boycott. It asks lawmakers to investigate whether the practical routes to economic and civic participation are sufficiently open. Useful evidence would include entry costs, switching costs, promotion expenditures, discovery outcomes, and the experiences of people who attempted to enter and withdrew. Naming the barrier should lead to measurement and remedies, rather than substitute for them.

## 4. Systemic oppression, insider networks, and gatekeeping

Systemic oppression, as used here, describes a pattern in which institutional arrangements repeatedly place people with less existing power at a disadvantage. The claim concerns how opportunity is organized. It does not require an allegation that every employee intends harm, and it does not mean that every unequal result proves oppression. Lawmakers should examine persistent barriers, their causes, their distribution, and whether practical alternatives exist.

This distinction matters because a system can reward behavior that narrows opportunity even when individual participants follow its rules. A platform may optimize for predictable engagement. Advertisers may prefer recognizable names. Publishers may seek established audiences. Investors may favor demonstrated traction. Each choice may have a business rationale, yet their interaction can create a difficult question: where is the newcomer supposed to obtain the first meaningful opportunity?

The burden can be especially serious for people who cannot finance a long period of unpaid visibility-building. A parent working multiple jobs, a rural organizer, a person with a disability, or a small firm with little cash may have less room to absorb repeated failed attempts. This is a policy hypothesis requiring evidence about actual groups and conditions, not an assertion that all members experience the same barriers. It supports collecting information about time, money, accessibility, and geography rather than counting accounts alone.

Calling the structure oppressive is a demand for accountability about opportunity. It should not become a justification for harassing successful people or suppressing their speech. The constructive response is to distribute access to discovery more widely. A fair system should make it possible to participate without first obtaining permission from an established circle, and should provide reasons and review when publicly supported opportunities are denied.

Established participants may meet through professional events, partnerships, shared advisers, sponsorships, and personal friendships. Those connections can make reciprocal promotion easier. The concern is not friendship itself, but an insider network using access, referrals, invitations, distribution, or contracts to protect its members from competition. A newcomer perceived as a competitive threat may face closed opportunities even when the public would value the alternative. This is a mechanism lawmakers should investigate, not an allegation that every established person participates in such conduct.

Concrete questions include whether organizers require exclusivity, whether members pressure suppliers not to work with outsiders, whether competitors agree to deny access, and whether participants face retaliation for supporting a new entrant. Evidence could include messages, contractual terms, ownership records, decision timelines, and corroborated testimony. The FTC explains that certain concerted refusals to deal can violate antitrust law, depending on the facts. [12] Shared contacts, similar decisions, or simultaneous criticism alone do not establish an agreement. The remedy should target exclusionary conduct rather than criminalize social relationships.

## 5. Attention can reproduce its own advantages

An influential experiment by Matthew Salganik, Peter Dodds, and Duncan Watts examined an artificial music market with 14,341 participants. Showing participants information about earlier choices increased inequality and unpredictability of success. Quality still mattered, but it did not fully explain outcomes. The study provides evidence that social influence can affect the distribution of attention. It does not establish how any present platform ranks content, nor does it directly measure elections or small-business markets. [1]

The policy inference is that popularity should not automatically be treated as an independent measure of merit. A large audience may reflect excellent work, but also the cumulative effects of earlier exposure. Where discovery systems repeatedly consult signals produced by previous discovery, they may reinforce advantages that began for reasons other than superior value. Lawmakers should investigate the size of that effect in particular markets rather than assume that every ranking is either perfectly fair or deliberately corrupt.

A useful response would create opportunities for evaluation before familiarity determines the outcome. Voluntary discovery spaces could rotate eligible participants, offer user-selected categories, and test samples without prominently displaying popularity counts. A small-business directory might let shoppers compare products by features and price before showing brand recognition. A civic directory could let residents compare proposals by issue and jurisdiction while retaining clear authorship and accountability.

These designs would not prove that newcomers are better. They would make a fairer test possible. If users still prefer established participants after encountering credible alternatives, that preference should count. The objective is to give alternatives a meaningful encounter with the public. A system that never offers that encounter cannot confidently claim that the public has rejected them.

## 6. Evidence of concentration, with its limits

The United Kingdom Competition and Markets Authority reported in 2022 that more than 60 percent of music streams involved recordings by the top 0.4 percent of artists. It also estimated that around 12 million UK streams in 2021 could yield an artist approximately 12,000 pounds, a level reached by fewer than one percent of artists. These figures describe that market and period; they are not current US earnings estimates or evidence about all online activity. [2]

The same authority found benefits for consumers and concluded that the creator concerns it examined were not driven by recording-market concentration or significant excess profits available for redistribution. It declined a further market investigation. That finding must be included, because a proposal loses credibility if it cites concentration while concealing the regulator's explanation. The report still invited policymakers to consider wider measures concerning creators. [2]

The appropriate lesson is to separate questions. Are audiences concentrated? Are entry conditions unfair? Has a firm violated competition law? Would an alternative discovery service improve opportunity? Those questions can have different answers. A highly concentrated outcome can justify experiments in discovery without establishing unlawful conduct. Conversely, a service with many visible accounts might still impose exclusionary conditions on competing services or sellers.

For the broader proposal, Congress should commission comparable evidence across sectors rather than transplant music statistics into politics or commerce. Studies should distinguish paid exposure from unpaid recommendations and measure whether newcomers gain sustained customers or support. The purpose of the existing evidence is to show that attention can be highly unequal and that policy choices deserve examination. It is not a shortcut around the need to investigate each field on its own terms.

## 7. Recommendation systems and the repetition problem

YouTube states that its homepage recommendations primarily rely on watch history and that the video currently being watched is a main signal for suggestions about what to play next. It also describes user controls, including turning off and deleting watch history. Those disclosures help explain how earlier activity can shape later exposure. They do not prove that the service universally favors mainstream names or intentionally excludes newcomers. [3]

The broader policy concern is the relationship between convenience and discovery. A system that predicts what a person already recognizes may serve an immediate preference while failing to reveal an unfamiliar alternative. That is a possible tradeoff, not an inevitable result of personalization. Users should be able to decide how much continuity and novelty they want. A meaningful alternative would let them deliberately enter a space designed around unfamiliar participants.

Discovery controls should be specific enough to be useful. Options could include smaller-audience participants, first-time local candidates, independent shops, new organizations, and a limit on repeated appearances by the same account within a selected discovery session. These are proposed features for voluntary services and publicly supported pilots. They are not descriptions of current platform functions or claims that compulsory ranking mandates would automatically be constitutional.

Users also need explanations they can understand. An interface could disclose whether a result is sponsored, follows a selected topic, comes from a direct subscription, or appears because the service is testing unfamiliar material. The public should not need proprietary source code to understand the basic reason for a recommendation. The objective is informed choice: people should be able to seek established favorites and, when they choose, leave the cycle of repeated names without losing access to useful information.

## 8. Small businesses and the cost of being seen

For a small business, discovery can determine whether an otherwise useful product ever reaches a customer. A new firm may compete against businesses with advertising departments, national recognition, extensive reviews, and existing customer lists. Those advantages are not inherently wrongful. The policy concern arises when the practical methods of reaching buyers require resources that only established participants are likely to possess.

Consider a hypothetical neighborhood repair shop. Its owner may offer good work but lack time to produce daily promotional content, study advertising auctions, and manage several platforms. If public visibility depends heavily on those tasks, commercial success can partly turn on expertise unrelated to the service being sold. Consumers may also miss a nearby option that would have suited them. These possibilities warrant research into actual discovery costs, rather than an assumption that all small firms face the same conditions.

Treasury's 2025 small-business financing brief called for evaluating access gaps and examining more uniform disclosures to support comparison and competition. That work concerns finance rather than recommendation systems. Its relevance here is limited but useful: the ability to understand terms and compare alternatives is an established policy concern, and financial constraints can shape the choices available to a new enterprise. [4]

A commercial discovery pilot could support directories controlled by local cooperatives, libraries, or independent operators. Eligibility could consider ownership, revenue, employees, and affiliation rather than follower counts alone. Listings should disclose sponsorship and allow comparison by location, price, service, and accessibility. Existing consumer-protection rules should continue to apply. A small-business label must never become permission for misleading claims. The objective is a fair route to customer consideration, with the customer retaining the final decision.

## 9. Emerging leaders and community institutions

Leadership develops outside elections and entertainment. Residents organize neighborhood projects, build associations, start educational initiatives, create independent publications, and propose solutions to local problems. Their influence may begin with a small group rather than a recognized institution. A fair opportunity framework should include these forms of contribution instead of treating public attention as a prize reserved for celebrities, brands, and officeholders.

A community organizer should be able to describe a proposal without first translating it into commentary about a famous person. A new association should have a reasonable way to reach residents who might care about its work. A local expert should be discoverable because of relevant knowledge rather than only through institutional status. These are normative goals. Whether particular systems obstruct them, and how often, should be established through evidence from the affected communities.

Publicly supported directories could organize information around local needs: transportation, neighborhood improvements, arts, education, business development, or public services. Participants would identify themselves and disclose relevant affiliations, funding, and conflicts. Residents could select topics and locations. Rotating presentation could prevent early popularity from becoming permanent control over the most prominent positions. Moderation would address fraud and abuse through written standards and reviewable decisions.

The design must avoid creating a new official class of approved leaders. Government should not certify that an applicant's politics, personality, religion, or artistic style makes them worthy of influence. Where public support is involved, admission should rest on neutral, published conditions suited to the service. People must remain free to criticize the officials who fund it. An opportunity program that rewards loyalty to those already in power would reproduce the very structure this essay seeks to change.

## 10. Political discovery and democratic choice

The political version of the problem is especially serious. Voters may hear repeated discussion of a small number of national figures while knowing little about lesser-known candidates, local offices, or policy proposals. This essay does not supply a quantitative estimate of that pattern. It asks lawmakers to measure it, including differences among elections, communities, languages, and media services. Meaningful democratic choice requires opportunities to learn who is running and what each candidate proposes.

A candidate information service could use a different design from a commercial popularity feed. Residents could select the office and jurisdiction relevant to them. Eligible candidates could receive comparable profile fields, the same word limits, accessible formats, dated submissions, and links to official election information. Ordering could rotate or use a neutral rule. These features should help users compare candidates rather than encourage a government agency to promote favored personalities.

Broadcast law already contains a qualified equal-opportunities framework for candidate uses of broadcast stations, with specified news exemptions. That framework has a particular statutory scope. It should not be represented as a general equal-time entitlement across internet services. [5] Any new digital proposal requires its own constitutional and statutory analysis rather than an assumption that broadcast requirements automatically transfer online.

Political discovery also differs from a newcomer-only music service. Excluding established candidates from a government-supported voter guide could deprive voters of important information or favor challengers by design. A complete, neutral comparison service is therefore the better baseline for public support. Independent private groups can explore other editorial formats within applicable law. The public goal is informed choice across the relevant field, not an engineered election result.

## 11. Campaign finance and safeguards against favoritism

A political platform cannot assume that a free service is legally irrelevant because money never changes hands between the operator and a candidate. Federal campaign-finance rules address coordinated communications and circumstances in which spending becomes an in-kind contribution. The FEC describes a payment, content, and conduct framework, with exceptions and detailed conditions. Any candidate-related pilot must obtain a design-specific analysis; this essay does not resolve the status of a future service. [6]

For policy purposes, the safeguards should be clear before launch. A candidate directory should publish eligibility rules, allocation methods, sponsorship, and correction procedures. It should separate neutral election information from advertising and editorial endorsements. Officials should not direct visibility toward political allies or withhold it from critics. Administrative decisions should leave records that can be audited without exposing private user information.

The proposal should also distinguish public information from campaign assistance. A standardized guide covering an election is different in purpose from helping one candidate plan outreach, design a message, or target voters. Operational details matter. Coordination, commercial practices, applicable exemptions, election level, and funding arrangements may change the legal analysis. Congress should request expert review from relevant agencies and independent constitutional counsel rather than bury those questions in an implementation footnote.

Most importantly, new rules must not convert low recognition into an official endorsement of merit. Voters remain entitled to prefer an incumbent, a challenger, a large party, a small party, or no candidate. The government's role is to protect fair processes and lawful access to information. An emerging-opportunity agenda should be credible across political disagreement because its procedures remain fair when the next administration or a rival party controls the funding.

## 12. Monopoly law and a broader fairness agenda

The FTC explains that monopolization analysis concerns monopoly power and the conduct used to obtain or maintain it. Superior products, innovation, or business skill can lawfully produce a leading position; exclusionary conduct raises a different question. Popularity alone therefore does not establish an antitrust violation. Nor does the phrase mainstream market identify a legally defined relevant market without analysis of substitutes, competition, and other evidence. [7]

There is, however, a concrete reason to take gatekeeping seriously. The Department of Justice reported that a federal district court found Google unlawfully maintained monopoly power in general search and search text advertising in 2024, followed by a remedies decision in 2025. Those proceedings concern defined markets and conduct. They do not establish that YouTube's recommendation choices, Microsoft's Edge browser, every advertising service, or mainstream public figures have committed the same violation. [8]

The FTC also describes a concrete example of exclusion through business relationships: it found that Toys "R" Us organized a boycott by toy manufacturers against discount club stores, limiting their access to competing products. This historical example shows why supplier pressure and agreements deserve scrutiny; it does not establish comparable conduct by current public figures or platforms. [13]

Lawmakers should maintain two tracks. Enforcement agencies should investigate evidence of unlawful conduct under existing authority. Legislatures should separately consider whether lawful market outcomes still leave unmet public needs that can be addressed through new infrastructure, information, and opportunity programs. Conflating those tracks makes the cause easier to dismiss. Keeping them distinct allows action without requiring every excluded participant to prove a monopoly case first.

Investigations should focus on identifiable practices: restrictive agreements, discriminatory terms, obstruction of lawful switching, deceptive promotion, or retaliation supported by records. A bad outcome is a reason to ask questions, not a complete legal theory. The fairness agenda can be broader than antitrust while remaining evidence-based. It should defend the ability of independent services to compete and the ability of users to choose them, alongside remedies for any violations actually established.

## 13. Freedom of expression is part of the solution

An opportunity proposal must respect freedom of expression from the beginning. In Moody v. NetChoice, the Supreme Court explained the First Amendment significance of platforms' editorial choices in curated feeds, while vacating and remanding the facial challenges before it. That decision creates an important constraint on efforts to make government rebalance private expression. It does not permit this essay to declare every possible platform regulation valid or invalid. [9]

The strongest initial approach is to expand alternatives. Independent services can adopt a clear emerging-participant mission, and users can choose to enter them. Public programs can explore neutral infrastructure and information services with carefully drawn funding conditions. Counsel should evaluate the particular program, including its purpose, selection criteria, discretion, and effects. Calling funding voluntary does not automatically eliminate constitutional concerns about coercion, viewpoint discrimination, or unconstitutional conditions.

Government should not order citizens to stop listening to established performers, require media to criticize particular politicians, or decide which beliefs count as sufficiently original. The requested freedom is the freedom to find more people and institutions. A person who wants familiar favorites should keep that choice. A person who wants unfamiliar alternatives should have usable routes to them. Both preferences belong in a plural public sphere.

This also answers a possible objection to the language of oppression. Describing a structure as oppressive cannot authorize officials to suppress those who benefit from it. Remedies must be connected to demonstrated barriers and designed to expand liberty. The proposal will succeed only if its supporters are willing to protect fair procedures for people they dislike. Otherwise, a program intended to open public attention could become another instrument for controlling it.

## 14. A proposed Fair Competition and Opportunity Access Act

Congress should consider a Fair Competition and Opportunity Access Act. This is a proposed title and legislative framework, not the name of an enacted law. Its findings should describe the need to study barriers to discovery across economic and civic life, distinguish those barriers from established legal violations, and identify consumer choice, small-enterprise entry, independent cultural production, and accessible public information as public interests.

The first component would authorize a time-limited study of discovery and market entry. The second would establish competitively awarded pilots for independent discovery services and shared technical infrastructure. The third would support clear sponsorship disclosures and research into effective user controls. The fourth would require evaluation, accessible participation, privacy protections, conflict disclosure, and publication of aggregate results. Candidate-information projects would follow a separate legal and operational framework.

No appropriation figure is asserted here. Before legislation moves, Congress should obtain cost estimates and define the size, duration, responsible agencies, and statutory authority of each program. Funding should be competitive, limited, and reviewable. Awards should not be tied to a participant's support for an official, party, policy position, religion, or personal relationship. Small operators need an application process they can actually complete, with assistance that does not depend on expensive consultants.

The bill should require a public account of what worked and what failed. If pilots merely attract people who already know one another, they have not solved discovery. If grants produce a few new gatekeepers with opaque rules, they have reproduced the problem. A sunset and independent review would allow Congress to revise or discontinue ineffective programs. The legislative objective should be an expanding range of viable routes into public life, supported by evidence rather than perpetual funding by habit.

## 15. Eligibility, graduation, and preventing capture

An emerging-participant space needs rules that correspond to its purpose. A single view threshold cannot work equally well for musicians, local shops, nonprofit organizations, and candidates. Eligibility should therefore be sector-specific and tested in pilots. Relevant measures may include sustained audience size, business revenue, ownership, professional backing, organizational age, or access to substantial promotion. Any numerical limits should be published as proposed program choices, not presented as scientifically settled boundaries.

Ownership matters because a small account can be controlled by a large company. An established enterprise could otherwise create nominally independent brands and occupy a space intended for newcomers. Programs should require proportionate disclosure of controlling interests and significant promotional relationships. Audits should investigate evasion without assuming that a collaboration or modest investment automatically disqualifies someone. People need clear examples, notice, and an appeal route.

Success should trigger a transition rather than punishment. A creator or business that grows beyond the threshold could receive a defined graduation period, retain lawful access to its records, and invite consenting followers to continue the relationship elsewhere. The reserved discovery benefit would end under the published rules. A brief surge should not necessarily force immediate removal; rolling measurements can reduce that risk. The program should help people build independence rather than make them afraid to grow.

Political services need different criteria. A public voter guide should generally seek complete coverage of the relevant eligible candidates rather than restrict admission according to fame. Community-leadership directories should avoid subjective official judgments about whether someone is sufficiently important. The overall principle remains consistent: eligibility rules should serve a legitimate, defined purpose and prevent capture, while leaving participants free to succeed, criticize the system, and seek opportunities beyond it.

## 16. Paid promotion, deception, and authentic discovery

People cannot make informed choices if paid placement looks like an independent judgment of merit. The FTC's 2022 dark-patterns report describes practices that impair consumer choice, including advertisements disguised as independent content. That evidence supports taking disclosure and interface design seriously. It does not establish that all recommendations are advertisements or that every commercial ranking is deceptive. [10]

An emerging-opportunity service should disclose sponsorship where users encounter the promoted item. A separate policy page is insufficient if the result itself appears to be an unpaid recommendation. Operators should identify who paid, what benefit was purchased, and whether payment affected placement. Where a pilot promises unpaid rotating discovery, it should not quietly sell the most valuable positions. A newcomer space dominated by the biggest promotional budget would defeat its own purpose.

Authenticity also requires protection against manufactured popularity. Purchased views, coordinated fake accounts, fabricated reviews, and concealed ownership can undermine eligibility and trust. Verification should be proportionate to the activity and provide alternatives for people without conventional business credentials. A sole proprietor should not face the same paperwork as a complex corporate group. At the same time, a program should not allow a major organization to conceal its control behind an individual profile.

Enforcement needs explanation and appeal. Automated fraud systems can make mistakes, and a false accusation can damage a small participant who lacks legal resources. Operators should preserve relevant records, provide a usable correction process, and separate suspicious activity from proven misconduct. Discovery must also remain safe for the public. Fraud, impersonation, illegal products, and threats do not become acceptable because their source is small. Fair opportunity depends on trust, truthful presentation, and proportionate rules that apply consistently.

## 17. Portability, independence, and practical access

A discovery opportunity becomes more valuable when it helps a participant build a durable relationship with willing supporters. A business should not have to rebuild its identity from nothing whenever it changes services. A creator should be able to preserve original work and useful records. A community organization should be able to tell consenting members where to find it. These are proposed design goals, subject to privacy, intellectual-property, security, and applicable legal limits.

Portability must not mean exporting other people's private information without permission. Pilots could support structured exports of a participant's own content, public profile information, transaction records where lawful, and consent-based contact relationships. Users should receive clear choices about subscriptions and transfers. Interoperability proposals need technical and competition analysis, including their costs for small services and their vulnerability to spam or impersonation. An open door needs a workable lock against abuse.

Access also includes disability, language, device quality, and connection speed. A directory that works only on a new phone or requires a video introduction may exclude capable participants. Text alternatives, readable layouts, captions, keyboard access, and low-bandwidth pages should be part of pilot requirements. These are practical service goals; the precise legal accessibility obligations should be assessed for the operator and context rather than assumed identical across every project.

The long-term objective is independence. A publicly supported service should not become the only acceptable route to customers or civic participation. It should help people establish multiple lawful connections and reduce dependence on any single intermediary, including itself. Programs should be judged partly by whether participants can leave successfully. Otherwise, a reform presented as liberation from gatekeeping may simply move the gate to a new organization.

## 18. Measuring opportunity and confronting objections

The central objection is reasonable: people often prefer familiar names, and attention is limited. A new platform cannot create unlimited time or guarantee that the public will like every participant. This proposal accepts those limits. It asks whether people can encounter credible alternatives and choose among them. A fair opportunity to be evaluated differs from a promise of equal income, equal votes, or equal popularity.

Evaluation should measure more than registrations and total impressions. Relevant outcomes include exposure to previously unfamiliar participants, repeat engagement, customer conversion where appropriate, participant retention, cost per useful connection, complaints, and the distribution of benefits. Political-information services should measure comprehension and coverage rather than success for a party or candidate. Researchers should distinguish temporary publicity from relationships that continue after grant support ends.

Pilots should establish baseline conditions, document eligibility, and use suitable comparison methods. Some designs may permit randomized invitations or phased rollout; others may require matched comparisons or qualitative research. Privacy protections and voluntary participation remain necessary. Results should report uncertainty and differences across sectors. A successful arts directory does not by itself prove that the same design will improve voter information or local commerce.

Other objections concern cost, capture, and low-quality participation. They justify narrow pilots, published selection rules, independent review, and enforceable standards. They do not justify assuming that existing arrangements are the only workable ones. Congress should also examine unintended effects: new paperwork, strategic account-splitting, reduced useful recommendations, or funds disproportionately reaching well-connected applicants. The best defense of the cause is a willingness to correct its own program when evidence shows failure. Fairness requires accountability from reformers as well as incumbents.

## 19. The legislative request: open more doors

Lawmakers should hold hearings on access to discovery across culture, business, and civic life. Witnesses should include people who attempted entry and withdrew, alongside successful newcomers, established participants, platform operators, researchers, consumer advocates, accessibility specialists, and constitutional experts. Hearing only from visible success stories risks missing the barriers faced by those who never reached the committee's attention. Testimony should be tested against records wherever possible.

The committees should request sector-specific evidence, commission costed pilot options, and examine whether existing enforcement can address documented misconduct. Congress should then consider legislation that supports independent discovery infrastructure, transparent sponsorship, accessible participation, and durable relationships with consenting audiences. Election-related services require separate safeguards and expert review. The bill should state clearly that it neither guarantees popularity nor authorizes government viewpoint favoritism.

There is a wider cultural reason to act. UNESCO's 2005 Convention identifies equitable access to diverse cultural expression and the means of dissemination as important principles. That instrument is cited here as an international policy perspective, not as a source of a US cause of action or an assertion of binding US obligations. [11] The domestic argument stands on its own: a society benefits when people can encounter contributions beyond those already established.

The public should not have to spend its entire conversation circling the same people, companies, and institutions. Emerging participants should not have to borrow the names of the powerful merely to make their own existence visible. Economic blockade and systemic oppression are the terms this essay uses to challenge structures that repeatedly narrow that possibility. The requested response is concrete: investigate the barriers, enforce the law where violations are proved, fund carefully designed alternatives, and let the public choose among a wider range of people, products, and ideas.

## 20. When relationships become barriers to entry

Professional relationships can help people create useful work. Artists collaborate, business owners exchange referrals, and civic organizations share experience. Those activities can reduce costs and improve quality. A fair-opportunity agenda should protect that freedom while examining whether particular relationships also control access to essential opportunities. The relevant distinction is between working together to produce value and working together to prevent outsiders from competing.

Gatekeeping can operate through written requirements or informal expectations. A newcomer may be told that a partnership is unavailable because an established participant objects. A supplier may be warned that serving an independent firm will end an existing relationship. An event organizer may use admission criteria that favor insiders without explaining how those criteria serve the event. These are hypothetical examples for investigation. Their significance depends on evidence, the importance of the opportunity, alternative routes, contractual obligations, and the actual effects on competition.

Officials should therefore ask who controls the door and what happens when someone challenges the decision. Where public money supports an opportunity, administrators should publish selection standards, conflicts of interest, and procedures for reconsideration. Private arrangements require a different legal analysis. A refusal to collaborate is not automatically unlawful, and people retain freedom of association. But that freedom does not settle every question about agreements to exclude rivals from a commercial market. [7,12]

The public concern deserves a response that can distinguish these situations. Lawmakers should request records rather than infer coordination from photographs, friendships, or shared attendance at events. They should listen to excluded participants while giving accused organizations a fair opportunity to answer. An evidence-based process strengthens the argument: it identifies conduct that can be corrected and avoids turning an important challenge to gatekeeping into a claim that every successful relationship is suspicious.

## 21. Disclosure of conflicts and reciprocal promotion

Visibility often arrives through a chain of introductions. One organization recommends another, an established account highlights a business, or an influential person invites an unfamiliar speaker. Such recommendations can benefit the public. Problems arise when audiences cannot tell whether an apparently independent endorsement reflects compensation, common ownership, a financial stake, or an undisclosed obligation to exchange promotion. The recommendation may still be useful, but the relationship can affect how a reasonable person evaluates it.

A fair-opportunity program should make material relationships legible. In a publicly supported pilot, operators could disclose controlling ownership, paid placement, relevant financial interests, and the basic terms of promotional partnerships. Disclosure should appear where it matters to the user's decision. It should not require collecting irrelevant details about private friendships. The aim is accountability for the allocation of opportunity, rather than surveillance of people's social lives.

Reciprocal promotion also warrants careful evaluation. Two small organizations sharing audiences can help each other enter a market. A dominant group reserving its distribution channels for members can present different concerns, depending on market conditions and conduct. A rule that treats every reciprocal arrangement identically would miss this distinction. Research should examine scale, access conditions, alternatives, and whether independent participants can obtain comparable treatment on reasonable terms.

Disclosure alone cannot fix every barrier. A clearly labeled paid placement can still be unaffordable to a newcomer, and a disclosed relationship can still support exclusion. Transparency is therefore one component of a wider framework that includes independent discovery routes, eligibility rules, review, and lawful enforcement. Its immediate value is to stop manufactured independence from being mistaken for an impartial judgment. The public should be able to understand when attention is earned through a relevant recommendation, purchased through promotion, or circulated within a financially connected group. [10]

## 22. Protection against retaliation and a fair complaint process

People may hesitate to report exclusion if they believe a complaint will cost them future work. A small business can depend heavily on one distributor. A new performer can rely on a limited set of venues. A community organization can need access to an institutional partner. These dependencies create reasons to examine retaliation risks, without assuming that every unsuccessful applicant has been punished for speaking out.

Publicly funded pilots should publish a complaint process that is affordable, accessible, and independent of the person whose decision is challenged. Participants should be able to submit relevant contracts, correspondence, dates, and witness information. The process should distinguish disagreement with a selection decision from allegations of deception, conflicts, discriminatory administration, or prohibited exclusion. Decisions should explain the applicable standard and the evidence considered, subject to legitimate privacy and confidentiality limits.

Any proposed anti-retaliation rule needs a defined scope. A legislature should identify the protected activity, covered actors, required connection between complaint and adverse action, available remedies, and procedural protections. This essay proposes such review; it does not assert that a universal existing right protects every disagreement with a private platform or business partner. Remedies should address proved conduct and avoid compelling unwanted expressive collaboration.

The same fairness must apply to respondents. Accusations can be mistaken, records can be incomplete, and an apparently retaliatory decision may have an independent explanation. A credible process allows a response, protects against knowingly false submissions, and offers review of significant findings. Its purpose is to make reporting possible without prejudging the result. An opportunity system should be accountable to people who challenge it, including those who ultimately do not prevail. Otherwise, the practical price of raising a concern can become another barrier to participation.

## 23. Building institutions that remain independent

A platform reserved for emerging participants can itself become established, powerful, and resistant to competition. Its founders may develop preferred partners, its funding may depend on a few sponsors, and its most visible participants may seek permanent advantages. Reform must therefore address institutional design rather than assume that a new organization will remain fair because it began with good intentions.

Publicly supported operators should disclose governance, funding, selection authority, and significant conflicts. Their standards should explain how applicants qualify, how placement is allocated, and how those rules can change. Material changes should have notice and a transition process. A service should not recruit people under a promise of open discovery and then replace it with undisclosed pay-to-play arrangements once participants depend on it.

Independence also requires more than one alternative. Supporting several interoperable or portable services may be more resilient than creating a single national gateway. Local cooperatives, independent publishers, nonprofit directories, and commercial services could test different approaches. Each model has costs and incentives that deserve examination. A cooperative is not automatically impartial, and a commercial service is not automatically exclusionary. The relevant question is whether users and participants have genuine options and understandable terms.

An evaluation should ask whether a participant can leave without losing all evidence of their work and lawful relationships with consenting supporters. It should examine whether sponsors influence admissions or moderation, whether grant recipients repeatedly reward one another, and whether small applicants can compete for funding without established connections. The program should welcome independent audits and criticism. A reform that simply creates a new inner circle has failed its purpose. Its durable achievement would be an ecosystem in which no single circle can determine who gets the first meaningful chance.

## 24. A practical sequence for legislative action

Lawmakers can begin with a public request for evidence organized by sector. Participants should describe a specific opportunity, the conditions for access, the barrier encountered, and the records supporting their account. Researchers should compare those accounts with successful entry, voluntary consumer preference, operational constraints, and legitimate editorial decisions. This process would help identify where the problem is lack of information, lack of infrastructure, financing, exclusionary conduct, or a combination of factors.

Next, legislative staff should prepare a costed set of pilot options. Each option should identify its beneficiaries, administrator, duration, funding source, eligibility rules, constitutional considerations, privacy design, and evaluation method. Election-related information should remain separate from commercial promotion and artistic discovery. Committees should invite criticism of the proposal as well as support, especially from people concerned about government favoritism and the creation of new gatekeepers.

An initial bill could authorize a limited period of experimentation, followed by a public report and a decision about renewal. Reports should describe who applied, who benefited, who withdrew, and what participants could sustain after assistance ended. Aggregate data should be available for independent assessment. Personal records should not be published merely to make the program appear transparent. Where agencies discover evidence of unlawful conduct, referral should follow the relevant authority and normal procedural protections.

The request to lawmakers is therefore concrete: examine whether the routes to attention and opportunity are open in practice, and support workable alternatives where they are not. The public does not need officials to choose its favorite people. It needs more room to discover people it has never been given a meaningful chance to consider. A Fair Competition and Opportunity Access Act should be judged by that standard: whether it opens doors, preserves freedom, prevents capture, and makes independent participation more achievable across economic and civic life.

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